

SENATE BILL 1198

By Jackson

AN ACT to amend Tennessee Code Annotated, Title 68,
relative to designation as a critical access hospital.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. **Short title.**

This act is known and may be cited as the "Restoring Rural Hospital Access for Perry and Decatur Counties Act."

SECTION 2. **Findings.**

The general assembly finds that:

(1) Rural hospitals provide essential healthcare services to this state's most vulnerable populations and are often the only point of access to medical care in their respective regions;

(2) Perry County Community Hospital and Decatur County General Hospital have been fundamental in delivering healthcare services in Linden and Parsons, respectively;

(3) Both Perry County Community Hospital and Decatur County General Hospital previously served their respective communities as necessary providers of healthcare services to area residents for many years, including years that precede January 1, 2006; and

(4) The designation of these hospitals as critical access hospitals is vital for their operational stability and for the enhancement of healthcare services in rural Tennessee.

SECTION 3. **Declaration as necessary providers.**

(a) The general assembly declares that the following are necessary providers of healthcare services to area residents:

- (1) Perry County Community Hospital, located in Linden, Tennessee; and
- (2) Decatur County General Hospital, located in Parsons, Tennessee.

(b) Through its declaration in subsection (a), the general assembly recognizes the indispensable role these hospitals play in their respective communities, and acknowledges that prior to their closures both hospitals acted as necessary providers of healthcare services, including during a number of years prior to 2006.

SECTION 4. Purpose.

The purpose and intent of this act is to enable Perry County Community Hospital and Decatur County General Hospital to qualify for federal designation as critical access hospitals pursuant to criteria established in Section 1820 of the Social Security Act (42 U.S.C. § 1395i-4), ensuring that those hospitals may receive the support and resources needed to continue providing critical healthcare services.

SECTION 5. Implementation.

(a) The department of health and the health facilities commission shall take all necessary steps to facilitate the designation of Perry County Community Hospital and Decatur County General Hospital as critical access hospitals.

(b) The department of health and health facilities commission shall coordinate with relevant federal agencies to ensure compliance with federal requirements and to expedite the process of designation of Perry County Community Hospital and Decatur County General Hospital as critical access hospitals and the delivery of the consequent benefits of such designation.

SECTION 6. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that

can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 7. This act takes effect upon becoming a law, the public welfare requiring it.